

SENATE BILL 2048

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 24;
Title 29, Chapter 26 and Title 50, Chapter 6,
relative to opinions as to medical findings.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 24-7-115, is amended by designating the existing language as subsection (a) and adding the following new subsections:

(b) A licensed nurse practitioner or licensed physician assistant who is properly qualified as an expert under the Tennessee Rules of Evidence may testify as to the diagnosis of an injury or condition; the reasonable and necessary medical care provided; the reasonableness of the associated treatment charges; the medical cause of an injury, condition, or impairment; and any additional matters within the scope of expert testimony ordinarily permitted to a physician under the Tennessee Rules of Evidence in any civil action other than:

- (1) A health care liability action filed pursuant to title 29, chapter 26; or
- (2) A workers' compensation claim filed pursuant to title 50, chapter 6.

(c) This section does not permit the inclusion of an advance practice registered nurse or physician assistant on any workers' compensation panel pursuant to title 50, chapter 6, or the provision of any testimony by an advance practice registered nurse or physician assistant in a workers' compensation case regarding the injured worker's medical impairment rating or disability rating, or whether the injury is work-related.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.